

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isaac Forman	Team: Squad #07	CCRB Case #: 201802651	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 04/05/2018 7:55 AM	Location of Incident: Inside of § 87(2)(b)	18 Mo. SOL 10/5/2019	Precinct: 83
Date/Time CV Reported Thu, 04/05/2018 8:29 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 04/05/2018 8:29 AM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Dewan Campbell	12538	950147	104 PCT
2. POF Samantha Anderson	08325	950004	104 PCT
3. POF Gladys Vazquez	13027	938203	104 PCT
4. SGT Anibelka Perpinal	02950	942871	104 PCT
5. POM Amaury Gomez	17019	952789	104 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Dewan Campbell	Abuse: Police Officer Dewan Campbell entered § 87(2)(b) in Brooklyn.	A . Substantiated
B . POM Dewan Campbell	Force: Police Officer Dewan Campbell used physical force against § 87(2)(b)	B . Unsubstantiated
C . SGT Anibelka Perpinal	Abuse: Sergeant Anibelka Perpinal entered § 87(2)(b) in Brooklyn.	C . Exonerated
D . POF Samantha Anderson	Abuse: Police Officer Samantha Anderson entered § 87(2)(b) in Brooklyn.	D . Exonerated
E . POM Amaury Gomez	Abuse: Police Officer Amaury Gomez entered § 87(2)(b) in Brooklyn.	E . Exonerated
F . POF Gladys Vazquez	Abuse: Police Officer Gladys Vazquez entered § 87(2)(b) in Brooklyn.	F . Exonerated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On April 5, 2018, § 87(2)(b) filed this complaint with the CCRB via the intake phone line.

On April 5, 2018, at approximately 7:55am, Sgt. Anibelka Perpinal, PO Dewan Campbell, PO Samantha Anderson, PO Gladys Vazquez, and PO Amaury Gomez of the 104th Precinct, arrived at § 87(2)(b) in Brooklyn with an open I-Card for § 87(2)(b). § 87(2)(b) answered the door and PO Campbell requested to speak with § 87(2)(b). As § 87(2)(b) began walking away from the door to retrieve him, PO Campbell stepped into the apartment (**Allegation A-Abuse of Authority: Substantiated**). PO Campbell bumped his chest into § 87(2)(b)'s chest causing her to stumble approximately three steps backwards (**Allegation B-Force: Unsubstantiated**). As he pushed her backwards, Sgt. Perpinal entered the apartment followed by the other three officers (**Allegation C-F-Abuse of Authority: Exonerated**). § 87(2)(b) was not arrested or summonsed. § 87(2)(b) was placed under arrest in regards to a complaint of § 87(2)(b).

§ 87(2)(g)

No video footage of this incident was recovered.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Dewan Campbell entered § 87(2)(b) in Brooklyn.

Allegation (B) Force: Police Officer Dewan Campbell used physical force against § 87(2)(b)

Allegation (C) Abuse of Authority: Sergeant Anibelka Perpinal entered § 87(2)(b) in Brooklyn.

Allegation (D) Abuse of Authority: Police Officer Samantha Anderson entered § 87(2)(b) in Brooklyn.

Allegation (E) Abuse of Authority: Police Officer Amaury Gomez entered § 87(2)(b) in Brooklyn.

Allegation (F) Abuse of Authority: Police Officer Gladys Vazquez entered § 87(2)(b) in Brooklyn.

§ 87(2)(g)

It is undisputed that PO Campbell, Sgt. Perpinal, PO Gomez, PO Vazquez, and PO Anderson entered § 87(2)(b)'s apartment. § 87(2)(g) In addition, it is undisputed that PO Campbell made physical contact with § 87(2)(b) § 87(2)(g)

§ 87(2)(b) testified that after she opened the front door, PO Campbell asked if § 87(2)(b) was present. § 87(2)(b) confirmed that he was and said that she would go retrieve him. As § 87(2)(b) stepped away from the door, PO Campbell took two steps into the apartment and bumped his chest into § 87(2)(b)'s chest. PO Campbell then took approximately three steps

forward while his chest was bumping into § 87(2)(b). As a result, § 87(2)(b) took three steps backwards. § 87(2)(b) asked PO Campbell what he was doing and PO Campbell stated that he needed to follow her. As this was going on, Sgt. Perpinal approached the two of them and pulled PO Campbell away from § 87(2)(b). § 87(2)(b) came out of his bedroom and was placed under arrest (BR 01).

PO Campbell testified that after § 87(2)(b) answered the door, he explained to her that they were there to speak to § 87(2)(b) regarding an open complaint against him. § 87(2)(b) agreed to retrieve § 87(2)(b) and then closed the front door. Approximately one minute later, § 87(2)(b) returned to the door with § 87(2)(b). § 87(2)(b) was standing in the doorframe immediately in front of § 87(2)(b) who was inside the apartment. PO Campbell informed § 87(2)(b) that his ex-girlfriend had filed a complaint against him and that he was under arrest. After a brief discussion, § 87(2)(b) turned and began to walk further into the apartment. PO Campbell reached his arm into the apartment and grabbed § 87(2)(b)'s shoulder. As he did so, he stated to § 87(2)(b) "I'll come with you to get your stuff." PO Campbell reached out for § 87(2)(b) because he wanted to inform § 87(2)(b) that the officers had to escort him around the apartment. PO Campbell testified that an officer had to escort § 87(2)(b) around because if they allowed him to go unescorted, § 87(2)(b) could flee or retrieve a weapon. PO Campbell didn't know where § 87(2)(b) was going at the moment he turned around and couldn't recall if § 87(2)(b) said where he was going. As PO Campbell reached for § 87(2)(b) his chest bumped into § 87(2)(b)'s chest. This occurred because to reach § 87(2)(b) PO Campbell had to reach over § 87(2)(b). § 87(2)(b) did not fall backwards any steps as a result. PO Campbell described any contact as unintentional and solely because she was standing between him and § 87(2)(b) (BR 02).

Sgt. Perpinal testified that when § 87(2)(b) came to the door, he stood in front of § 87(2)(b) inside their apartment. PO Campbell explained that § 87(2)(b) was under arrest. § 87(2)(b) protested and § 87(2)(b) stepped in front of § 87(2)(b) and stated that they couldn't take her brother. § 87(2)(b) then began to walk further into his apartment. He took approximately two steps before PO Campbell reached out, into the apartment, and grabbed § 87(2)(b). As § 87(2)(b) was between them, PO Campbell had to reach over § 87(2)(b) to reach § 87(2)(b). § 87(2)(b) attempted to push PO Campbell with her hands on his chest. PO Campbell did not take any steps backwards as a result. As he was holding § 87(2)(b) PO Campbell took multiple steps forward into the apartment. Sgt. Perpinal couldn't see if this caused § 87(2)(b) to take any steps backwards or if PO Campbell was making contact with her at this point. Sgt. Perpinal then stepped into the apartment and separated § 87(2)(b) from PO Campbell. She testified that she needed to separate them to prevent the situation from escalating. Other than separating the parties, there was no other reason she went into the apartment. Behind her, the other three officers entered the apartment. Sgt. Perpinal and PO Vazquez then spoke to § 87(2)(b) to calm her down (BR 03).

The other officers interviewed were largely consistent in their testimony. According to their testimony, after a brief discussion with PO Campbell at the door of the apartment, § 87(2)(b) began to walk further into the apartment. PO Campbell reached into the apartment to stop him from leaving the door area. § 87(2)(b) stepped in front of PO Campbell and incidental contact

occurred. The other officers then entered the apartment to diffuse the situation (BR 04, 05, and 06).

Officers armed with probable cause that an individual has committed a crime, but not in possession of a warrant, may not cross the threshold of his home to take him into custody absent exigent circumstances. People v. Mendoza, 49 Misc. 3d 1007 (2015) (BR 07). In determining whether exigent circumstances are present, factors that apply, are: The gravity or violent nature of the offense, whether the suspect is reasonably believed to be armed, a clear showing of probable cause that the suspect committed the crime, strong reason to believe that the suspect is in the premises being entered, a likelihood that the suspect will escape if not swiftly apprehended, and the peaceful circumstances of the entry. People v. McBride, 14 N.Y.3d 440 (2010) (BR 08). The role of a peace officer includes preventing violence and restoring order. Brigham City v. Stuart, 547 U.S. 398 (2006) (BR 09).

It is undisputed that officers arrived at § 87(2)(b)'s home with an I-Card that indicated probable cause to arrest for unauthorized use of a motor vehicle, a misdemeanor, but no arrest warrant for § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegation C, D, E, and F** be closed as **exonerated**.

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (BR 11).
- PO Campbell has been a member-of-service for seven years and has been a subject in two CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
- Sgt. Perpinal has been a member-of-service for 11 years and has been a subject in one CCRB complaint and five allegations, none of which were substantiated. § 87(2)(g)
- PO Anderson has been a member-of-service for seven years and this is the first CCRB complaint to which she has been a subject.
- PO Vazquez has been a member-of-service for 13 years and has been a subject in two CCRB complaints and three allegations, none of which were substantiated. § 87(2)(g)
- PO Gomez has been a member-of-service for six years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- A FOIL request for notices of claim was submitted to the New York City Office of the Comptroller on July 27, 2018. The results of this inquiry will be added to the casefile upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 7

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date